NONTOKOZO MOYO

Versus

AMANDA FALALA

AND

KUDZANAI TARUVINGA

AND

SANDRA TARUVINGA

HIGH COURT OF ZIMBABWE
M DUBE J
BULAWAYO 20 MAY AND 27 JUNE 2025

Urgent chamber application for stay of execution pending appeal

M. Ndlovu, for the applicant
M.E.P Moyo with L. Ngwenya, for the 1st respondent
No Appearances for the 2nd & 3rd respondents

Introduction

DUBE J: This matter appeared before as an urgent chamber application wherein the applicant sought leave to execute an order of this court pending appeal. The 1st respondent opposed such application. The 2nd and 3rd respondents did not oppose the main matter which is being appealed against. It is taken that they wish to abide by any outcome that this court may order.

At the hearing of this application the 1st respondent raised a preliminary point to the effect that there was no application before the court as the application is fatally defective. Her legal counsel argued that this being an urgent chamber application to be served on other parties, failure to include procedural steps that respondents had to take in order to oppose the application rendered it fatally defective and that such defect could not be cured.

Counsel relied heavily on the matter of *Veritas v ZEC & Others* SC103-20. The applicant conceded that indeed it did not include the said procedural rights in its application

but argued that it had used the correct Form 23 as required by Rule 60 (1) of the High court rules, 2021 but made an omission on the necessary modifications to be made.

Applicant then sought condonation arguing that there is no prejudice occasioned to the 1st respondent as it had filed its notice of opposition, duly served the applicant and was present in court to argue the matter on the merits.

I dismissed the preliminary point as not being dispositive of the matter. My reasons were that despite the wrong format, the substance of the application had not been affected in any way, the application was duly served on the 1st respondent who filed her opposing papers and was present in court to argue her matter.

I further drew a distinction between the present matter and the Supreme Court's binding decision in the *Veritas* matter *supra.*

In the *Veritas* matter, the court dealt with a court application as opposed to a chamber application as in the present. Therein the form used did not only omit the procedural rights the respondents ought to be alerted to but additionally there was no summary of the grounds of application as required in Form 29 B. (See *Moyo v Sibanda & 4 Others, Rabeka v Stockil & Others HB1/15 and Munondo and 5 Others v New Century Productions Pvt Ltd and Others HH32/24)*

In the present matter the grounds of application are clearly spelt out. I was convinced that the applicant used Form No. 23 but fell short on procedural rights. I thus condoned the departure from the rules per Rule 7 of the High Court Rules 2021 and dismissed the preliminary point.

AD MERITS

The respondents raised its grounds of appeal follows: -

1. The court *a quo* committed a gross error of law in dismissing the preliminary point about there being no application before the court by reason of a fatally defective founding affidavit with no date when the commissioner appended his signature.

2. That *court a quo* committed a gross error of fact in that its decision finding that spoliation took place is so outrageous in its defiance of logic that no sensible

person who had applied his mind to the question to be decided would have arrived at it.

3. That the court *a quo* grossly erred at law in granting a spoliation remedy when the 1st respondent had not proved such spoliation on a balance of probabilities.

In assessing the grounds of appeal, I did not see any prospect of success and accordingly granted the application to execute the extant court order pending appeal. I shall now deal with the grounds *ad seriatim.*

Commissioning of the affidavit in the main application

The attestation of an affidavit requires that certain solemnities be complied with in the absence of which it is invalid (see *S v Hurle & Ors 1998 (2) ZLR 42 (H).* One of the solemnities that must be observed is that the person attesting an affidavit must appear before a Commissioner of Oaths. The two must be in the same place, at the same time and on the same day. (See also *Mandishayanyika v Sithole* HH-798-15)

> "An affidavit is a written statement made on oath before a commissioner of oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner. Equally the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously." (my own underlining for emphasis)

In the affidavit complained off, the attestation part reads as follows;

"Sworn to at Bulawayo this …….day of April 2025.

By me ……...
Nontokozo Moyo

Before me …….
Commissioner of Oaths."

All the blank parts are duly completed. The deponent signed signifying that she took the oath. The Commissioner of Oaths also signed signifying that he administered the oath. He placed a date above the deponent's signature signifying when and where the solemnities took place. The single date affixed by the Commissioner of oaths suffices. I do not know of any law

that requires the Commissioner of Oath' stamp to be a date stamp. I am satisfied that the attestation was properly done and that the affidavit so attested to is valid.

Whether an Act of Spoliation took Place.

The 1st respondent herein admits that the applicant herein was ordinarily resident at the disputed property No. 8 Holdengard, Hillside, Bulawayo and peacefully in occupation thereat. She however disputes the capacity in which she was so resident. She avers that she was an employee and a nurse to the deceased. If that is the case, she had no lawful right to arbitrarily and summarily eject her from the said property. If indeed she was an employee, the labour laws of the land should apply and she be given proper notice. If she was a wife under customary law, her status equates that of the 1st respondent. Their competing rights should be determined lawfully by the Master of the High court or any court adjudicating on a succession dispute. The act of seizing keys from the applicant is unlawful and spoliatory in nature.

Whether Spoliation is Proven or not

This ground of appeal is related to the one above. The requirements of spoliation are trite. (See *Zondiwa v Nyamande* SC45-23).

When the 1st respondent took possession of both the wallet of the deceased and the house keys, she had not yet been appointed an executrix to the deceased's estate. She acted without a court order and accordingly unlawfully.

I concluded therefore that all the grounds of appeal put forth by the 1st respondent lacks merit and do not enjoy any prospects of success dispassionately viewed.

Ncube Attorneys, applicant's legal practitioners
Sibanda and Nkomo Legal Practitioners, 1st respondent's legal practitioners